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Plaintiff, In Pro Per

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco

05/26/2026
Clerk of the Court
BY: JEFFREY FLORES
Deputy Clerk

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**DECLARATION OF FRANCISCUS
DYLAN ROSARIO IN SUPPORT OF 425
16 G DISCOVERY**

(CCP § 2015.5)

Dept.: 610
Date: June 24, 2026

**DECLARATION OF DYLAN FRANCISCUS ROSARIO IN SUPPORT
OF PLAINTIFF'S MOTION FOR ORDER PERMITTING SPECIFIED
DISCOVERY UNDER CCP SECTION 425.16, SUBDIVISION (G)**

Case: Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph
M. Quinn **Hearing date:** June 24, 2026, 9:00 a.m., Dept. 302 **Filing date:** May 21, 2026 (serve
by Tue, June 2, 2026 per CCP section 1005(b)) **Filed by:** Plaintiff Dylan Franciscus Rosario,
Self-represented

DECLARATION

I, Dylan Franciscus Rosario, declare as follows:

1 **A. Introduction; basis for personal knowledge**

- 2 1. I am the Plaintiff in the above-captioned action. I appear in pro per. I have personal knowledge
3 of the facts stated in this Declaration based on my direct involvement in the litigation, my
4 personal review of the docket, my personal review of the discovery requests I propounded,
5 and my personal communication of all electronic-service activity associated with this case. If
6 called as a witness, I could and would testify competently to the matters stated herein.
7 2. I make this Declaration in support of my Motion for Order Permitting Specified Discovery
8 Under CCP Section 425.16, Subdivision (g), filed concurrently herewith.

9 **B. Procedural posture relevant to this Motion**

- 10 3. The First Amended Complaint, filed February 25, 2026, is the operative pleading in this
11 action.
12 4. On April 9, 2026, Defendant CSAA Insurance Exchange filed a Special Motion to Strike
13 under CCP section 425.16 (seqs 015 to 018). Upon that filing, the discovery stay imposed by
14 CCP section 425.16(g) attached, as I understand the statute and as it has been described to the
15 Court in the operative briefing.
16 5. By minute order entered May 13, 2026, this Court continued and consolidated the pending
17 Dept. 302 matters in this action to a single hearing on June 24, 2026, 9:00 a.m., Department
18 302. By the parties' subsequent stipulation and on the Court's order, all remaining Dept. 302
19 line items were folded into the June 24, 2026 cohort.
20 6. On April 23, 2026, I filed a Motion to Deem Admitted / Compel Responses / Sanctions on
21 the predicate Sets I to V of discovery (the discovery served before Set Six). That motion was
22 originally set for May 18, 2026, continued by the Court's own motion to June 11, 2026, and
23 folded into the June 24, 2026 consolidated cohort. The April 23, 2026 motion is procedurally
24 distinct from this Motion: it concerns the predicate sets, not Set Six. (See ROA: Transaction
25 ID TBD; verify on SFTC portal.)

26 **C. Set Six discovery (May 5, 2026; Transaction ID 79392208)**

- 27 7. On May 5, 2026, I served Set Six discovery on Defendant by electronic service. The electronic-
28 service consent on file for Defendant's counsel is at docket sequence 009 (March 6, 2026).

1 The Set Six service bears Transaction ID 79392208.

2 8. The four Set Six items are:

- 3 (a) Plaintiff's Requests for Production of Documents (RFP), Set Six;
4 (b) Plaintiff's Special Interrogatories, Set Six;
5 (c) Plaintiff's Requests for Admission (RFA), Set Six; and
6 (d) Plaintiff's Form Interrogatory 17.1, Set Six (a rolling 17.1 keyed to RFA Set Six).

7 9. The base statutory response deadline for Set Six is calculated under CCP sections 2030.260
8 (Special Interrogatories), 2031.260 (RFP), 2033.250 (RFA), and CCP section 1010.6 (elec-
9 tronic service). On a stay-not-applicable theory, the response deadline would be June 9, 2026
10 (May 5, 2026 + 30 days + 5 calendar days for electronic service). On a stay-applicable the-
11 ory, the deadline runs from the date the section 425.16(g) stay lifts. Plaintiff has documented
12 this dual-track calculation in the contemporaneously filed Notice of Default in Discovery
13 Responses (Set Six).

14 10. As of the filing of this Motion, Defendant has not requested an extension of time to respond
15 to Set Six and has not represented to me that it intends to serve responses by June 9, 2026.

16 **D. Specified-discovery framework: each Set Six item, individually justified**

17 11. RFP Set Six is necessary to the second-prong probability-of-prevailing record. RFP Set Six
18 requests categories of documents within Defendant's exclusive possession that are material to
19 the second-prong analysis: (a) the claim file relating to my insurance claim, (b) fair-claims-
20 practices regulation compliance documents under 10 CCR sections 2695.1 to 2695.14, and
21 (c) Insurance Code section 790.03(h) channel evidence. These categories of documents are
22 not available from any third-party source. They must come from Defendant. The volume and
23 burden of producing them is finite and known to Defendant.

24 12. Special Interrogatories Set Six identifies the persons most knowledgeable as to each subject
25 central to the second prong: claim handling, reserve setting, communications underlying the
26 second-prong record, and the chronology of decisions made in the claim file. Identification
27 interrogatories are by their nature narrow and produce minimal burden. They are neces-
28 sary because, without identification of the relevant Defendant personnel, I cannot effectively

1 prepare the second-prong showing. The Special Interrogatories Set Six items are limited to
2 identification subject matter.

3 13. RFA Set Six requests admission of (i) the genuineness of identified documents in Defen-
4 dant's possession and (ii) the existence (not the truth) of identified communications already
5 within Defendant's possession. The genuineness and existence RFAs are narrowly cabined
6 and do not request opinion or contention. They are the kind of authentication-and-existence
7 record the discovery code itself contemplates as the cleanest tool for streamlining the trial-
8 preparation process. (See CCP section 2033.010.)

9 14. Form Interrogatory 17.1 Set Six is the linked-response (rolling 17.1) keyed to RFA Set Six. It
10 is the Judicial-Council-designated tool for discovering the basis (facts, witnesses, documents)
11 for any RFA not unqualifiedly admitted. It does not enlarge the scope of inquiry beyond RFA
12 Set Six. Without Form Interrogatory 17.1 Set Six, the answers to RFA Set Six are evidentiarily
13 underdeveloped and cannot serve their intended second-prong-streamlining function.

14 **E. Need-for-discovery facts (good cause tied to second prong)**

15 15. The second-prong burden under CCP section 425.16(b)(2) requires me to make a prima facie
16 evidentiary showing that the challenged claims have minimal merit. (See *Wilson v. Cable*
17 *News Network, Inc.* (2019) 7 Cal.5th 871, 884; *Baral v. Schnitt* (2016) 1 Cal.5th 376, 384 to
18 385.) That burden, as a practical matter, requires access to (a) the documentary record of how
19 Defendant handled my claim, (b) the identification of the personnel involved in that handling,
20 and (c) the existence and genuineness of identified communications in Defendant's posses-
21 sion. Without those three categories of information, I cannot effectively oppose the Special
22 Motion to Strike on the second prong as to the bad-faith and statutory-violation theories.

23 16. The information sought is exclusively in Defendant's possession. My insurance claim file,
24 Defendant's internal compliance documents under 10 CCR sections 2695.1 to 2695.14, and
25 Defendant's internal communications about my claim are not available from any third-party
26 source. My personal records do not duplicate that documentary record. No public source
27 supplies it. No subpoena to a third-party can produce Defendant's internal claim-handling
28 materials.

1 17. I have not made any other propounded discovery beyond Set Six in connection with this
2 Motion. The “specified discovery” requested is the same Set Six items already served. There
3 is no new written discovery, no deposition request, no subpoena to a third party, and no expert
4 discovery embedded in this Motion.

5 18. The relief I seek is narrowly tailored. I am asking the Court to authorize the verified-response
6 burden Defendant has been on notice of since May 5, 2026, and to fix a response date
7 measured from the entry of the Court’s order. I am not asking the Court to lift the section
8 425.16(g) stay generally.

9 19. The information requested by Set Six is not duplicative of the predicate Sets I to V. The
10 predicate sets are the subject of the April 23, 2026 deem-admitted / compel motion, which
11 addresses a different set of items and is not part of this Motion. The Set Six items in this
12 Motion are supplemental and tailored to the second-prong analysis.

13 **F. Britts framework, applied to my circumstances**

14 20. As I understand the published California Court of Appeal opinion in Britts v. Superior Court
15 (2006) 145 Cal.App.4th 1112, the trial court has discretion under CCP section 425.16(g), on
16 a noticed motion and for good cause shown, to order that specified discovery be conducted
17 notwithstanding the discovery stay. I understand that Britts treats specified discovery as the
18 designed off-ramp for a plaintiff who needs limited, focused discovery to meet the second-
19 prong probability-of-prevailing burden during the pendency of an anti-SLAPP motion. This
20 Motion is filed in conformity with that framework: it is a separately noticed motion, identifies
21 specified discovery (Set Six items 1 through 4), and articulates good cause request-by-request.

22 **G. No new legal argument; no enlargement of the second-prong record**

23 21. This Motion does not, and is not intended to, supplement or enlarge the second-prong evi-
24 dentiary record before the Special Motion to Strike. It seeks only to produce the foundational
25 evidentiary record from which a proper second-prong opposition can be assembled at the time
26 the Court directs. No portion of this Declaration, the Motion, or the Memorandum is offered
27 for purposes of supplementing the section 425.16(b)(2) record without further leave of the
28 Court.

1 **H. Verification**

2 22. I have read this Declaration and the accompanying Notice of Motion and Motion, Memorandum of Points and Authorities, and Request for Judicial Notice. To my personal knowledge,
3 the facts stated in this Declaration are true.
4

5 23. I declare under penalty of perjury under the laws of the State of California that the foregoing
6 is true and correct.

7 Executed on May 21, 2026, at Rohnert Park, California.

By: _____ Dylan Franciscus Rosario, Plaintiff in Pro Per 7624 Melody Drive
Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltrinox@gmail.com

Dated: May 25, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this declaration.

#	Authority	Specific requirement	This filing's compliance	Evidence
1	CCP 2015.5	Verification under penalty of perjury	Declaration signed and dated	Signature block
2	CRC 3.1113	Declaration in support of motion	Facts stated on personal knowledge	Declaration body
3	Evid. Code 702	Personal knowledge foundation where applicable	"I declare" opening	Opening paragraphs